

HOUSE No. 407

The Commonwealth of Massachusetts

PRESENTED BY:

Daniel J. Hunt

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act regulating the practice and licensure of veterinary technicians.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Daniel J. Hunt</i>	<i>13th Suffolk</i>	<i>1/15/2025</i>
<i>Jacob R. Oliveira</i>	<i>Hampden, Hampshire and Worcester</i>	<i>2/8/2025</i>
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>4/15/2025</i>

HOUSE No. 407

By Representative Hunt of Boston, a petition (accompanied by bill, House, No. 407) of Daniel J. Hunt and Jacob R. Oliveira for legislation to regulate the practice and licensure of veterinary technicians. Consumer Protection and Professional Licensure.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act regulating the practice and licensure of veterinary technicians.

Whereas, The deferred operation of this act would tend to defeat its purpose, which is to forthwith regulate the practice and licensure of veterinary technicians, therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public convenience., therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public convenience.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 13 of the General Laws is hereby amended by striking out section
2 26 and inserting in place thereof the following section:-

3 Section 26. (a) There shall be a board of registration in veterinary medicine, in sections
4 27 and 28 called the board, consisting of 4 veterinarians, 3 licensed veterinary technicians, as
5 defined in section 54A of chapter 112 and 2 representatives of the public, subject to section 9B.
6 Each member shall be appointed by the governor. Each member of the board shall be a legal
7 resident of the commonwealth. Each veterinarian member of the board shall be licensed to
8 practice veterinary medicine in the commonwealth, a graduate of a school or college teaching
9 veterinary medicine and approved by the approving authority and shall have had at least 5 years'

experience in the active practice of veterinary medicine prior to their appointment. Each licensed veterinary technician member shall be licensed in accordance with section 56F of chapter 112 and have at least 5 years experience in the active practice of veterinary technology. No member shall be a member of any faculty in any institution having the power to confer degrees in veterinary medicine. One member thereof shall annually before December first be appointed by the governor, for 5 years from January first following. No member appointed to a full 5-year term shall be reappointed to succeed themselves.

SECTION 2. Section 54A of chapter 112 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting, after the definition of “Board”, the following definition:-

“Licensed veterinary technician” and “veterinary technician,” a graduate of an American Veterinary Medical Association accredited program in veterinary technology or veterinary nursing who has achieved a passing score on an approved licensing exam as determined by the board and is licensed in the commonwealth.

SECTION 3. Said section 54A of said chapter 112, as so appearing, is hereby further amended by inserting, after the definition of “Veterinarian,” the following definition:-

“Veterinary assistant,” an individual working as part of a veterinary healthcare team who is not a licensed veterinary technician.

SECTION 4. Said section 54A of said chapter 112, as so appearing, is hereby further amended by adding the following definition:-

“Veterinary technology,” the performance of services within the field of veterinary

31 medicine by a licensed veterinary technician who is employed by or under the
32 supervision of a licensed veterinarian to perform such duties as are required in carrying out
33 medical orders as prescribed by a licensed veterinarian.

34 SECTION 5. Said chapter 112 is hereby further amended by inserting after section 56E
35 the following section:-

36 Section 56F. (a)(1) An individual shall be licensed as a veterinary technician, by the
37 board, to practice veterinary technology. Only those individuals who are licensed shall
38 utilize the title of veterinary technician. No person shall hold themselves out as a licensed
39 veterinary technician in the commonwealth unless licensed in accordance with this section;
40 provided, that any individual or veterinary practice in violation of this subsection may be subject
41 to fines as established by the board.

42 (2) Veterinary technician students, or other individuals deemed appropriate by the board,
43 working under the supervision of a licensed veterinarian or a licensed veterinary technician may
44 engage in activities necessary to learn and practice supervised techniques on patients.

45 (b)(1) The board shall promulgate rules and regulations by which veterinary technicians
46 shall be licensed and registered in the commonwealth. Any rules that allow individuals to
47 become licensed without a formal degree in veterinary technology shall have an end date no later
48 than July 1, 2030. The board may recommend the suspension or revocation of a veterinary
49 technician's license for failure to abide by the laws of the commonwealth or regulations
50 promulgated by the board.

(2) The regulations shall: (i) define the duties which supervising, licensed veterinarians may assign to licensed veterinary technicians and to non-licensed veterinary assistants; (ii) address the maintenance, suspension and revocation of licenses; (iii) provide for continuing education requirements for licensed veterinary technicians; (iv) determine the criteria by which an individual shall be deemed a licensed veterinary technician or a veterinary assistant; and (v) establish guidance for students working under the supervision of a licensed veterinarian or licensed veterinarian technician pursuant to paragraph (2) of subsection (a).

(c) This section shall not apply to: (i) a research institution as defined in section 136A of chapter 140; or (ii) special cases, including zoos and aquaria, diagnostic facilities, licensed wildlife rehabilitation facilities and any other such special cases as the board shall identify.

SECTION 6. Notwithstanding section 26 of chapter 13 of the General Laws, or any other general or special law to the contrary, the initial appointments of veterinary technicians to the board of registration in veterinary medicine shall be Massachusetts Veterinary Technician Association certified veterinary technicians selected from a list of nominees provided to the governor. For the initial appointments of veterinary technicians, there shall be one 3 year appointment, one 4 year appointment, and one 5 year appointment.

SECTION 7. The board of registration in veterinary medicine shall promulgate regulations pursuant to section 56F of chapter 112 of the General Laws, inserted by section 5, not later than 180 days after the effective date of this act.

SECTION 8. Not later than 180 days after the effective date of this act, the board of registration in veterinary medicine shall provide information to veterinarians, veterinary technicians, veterinary practices and animal hospitals regarding definitions of roles of licensed

73 veterinary technicians and veterinary assistants as promulgated under regulations pursuant to
74 section 56F of chapter 112 of the General Laws, inserted by section 5.

75 SECTION 9. The board of registration in veterinary medicine shall issue temporary
76 licenses for all current certified veterinary technicians through the Massachusetts
77 Veterinary Technician Association and shall promulgate regulations for the temporary licensure
78 of individuals practicing veterinary technology within 180 days of the effective date of this act.

79 SECTION 10. All individuals practicing veterinary medicine technology required to be
80 licensed pursuant to section 56F of chapter 112 of the General Laws, inserted by section 5, shall
81 be licensed not later than July 1, 2030.